18 March 2021

PRICON MICROELECTRONICS, INC.
Cabuyao, Laguna

Attention: **Ms. Anna Marie Nueva**

Subject: **Proposal for One (1) Year Maintenance of Ruckus Equipment**

Dear Ma'am:

Trends & Technologies, Inc. ("Trends") is pleased to be given the opportunity to meet your requirement. We hope that you would find our Proposal most suitable to your needs as Trends has the resources, the technical expertise, and an uncompromising support group committed to see you through the realization of your project.

For any clarification, please do not hesitate to contact the undersigned Account Manager, tasked to handle all your inquiries.

Our Financial Proposal and Terms and Conditions is herewith attached for your reference and consideration.

Also attached our Services and Solutions Portfolio.

Very truly yours,

Mary Cris Ramirez
Services Account Manager
Enterprise Business Group
Mobile Number: 09178181697
Email address: mbramirez@trends.com.ph

FINANCIAL PROPOSAL

SKU	Description	QTY	Unit Price	Extended Price
827-R500-1000	Partner Support Renewal for R500, 1 Year	6	5,679.00	34,074.00
827-R500-1000	Partner Support Renewal for R500, 1 Year	13	5,679.00	73,827.00
822-1201-1L00	Associate Partner Support Renewal, ZoneDirector ONE AP Upgrade, 1 Year	23	3,380.00	77,740.00
822-1205-1000	Associate Partner Support Renewal, ZoneDirector 1205, 1 Year	1	15,800.00	15,800.00
One (1) year Trends Support Services • 24 x 7 Helpdesk • 24 x 7 Remote and On-call Engineering Support (Corrective) with Annual Preventive Maintenance		1 lot	68,000.00	
Total Cost in Php, Zero-Rated			269,441.00	
Less executive discount			39,441.00	
Total Cost after executive discount in Php, Zero-Rated			230,000.00	
Less additional discount			**5,000.00**	
Total Cost after executive discount in Php, Zero-Rated			**225,000.00**	

TERMS AND CONDITIONS

Payment Terms Validity: Offer price is quoted in Philippine Peso and is subject to adjustments and arising from exchange rate fluctuations, as may be applicable.

Price is Zero-rated of twelve (12%) VAT and payable within thirty (30) days from issuance of invoice. This valid for thirty (30) days from the date of this Proposal. Trends reserves the right to change the prices if there is any additional need / condition that has not been made known to Trends at the time of preparing this Proposal or has not been discussed in detail by the Parties.

Delivery Lead Time: Ten (10) to Fifteen(15) business days upon receipt of Purchase Order ("PO").

Order Cancellation: For us to fulfil your order, we will have to undertake corresponding obligations and incur costs. Hence, any PO cancelled prior to delivery shall be charged a cancellation fee of thirty percent (30%) or the sum of penalties and fees charged to Trends, whichever is higher. No cancellation is allowed for orders delivered or in the process of delivery for which full purchase price shall be invoiced and paid accordingly.

Risk of Loss and Title: a) Risk of loss and / or damage shall pass to Buyer upon delivery.

b) Title shall not pass to Buyer until Trends has been paid in full for the Products.

Limitation of Liability: a) Trends' aggregate liability for any and all claims arising out of or in connection with each transaction for breach of contract, breach

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of warranty, breach of statutory duty or negligence (or other tort) is limited to direct damages suffered by Buyer up to a maximum of the total price paid by Buyer for the specified provision in respect of which the claim arose.

b) Under no circumstances shall Trends be liable for loss of production, loss from business interruption, loss of data, loss of profits, loss of anticipated savings, loss of goodwill or any indirect, incidental, special or consequential damages, losses or expense, even if Trends has been advised of the possibility of such damages.

CONFORME

This Proposal constitutes a valid and binding contractual agreement once signed by you, or upon receipt of the Service provided herein, whichever comes earlier.

_____

Authorized Signatory

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TECHNICAL PROPOSAL

1. SUMMARY

DESCRIPTION OF SUPPORT SERVICES		ENTITLEMENT
Maintenance Period		**One (1) Year 31 March 2021 to 31 March 2022**
Service Requests	Service Desk	Available 7 x 24
	Landline	TL: 811-8181 / DL: 863-2188
	Mobile	0917-500-3711
	SMS	0917-571-7046
	eMail	servicedesk@trends.com.ph
Phone Support	Response Time	Within 30 minutes upon receipt of call by TTI helpdesk representative
Engineering Services	Service Availability	24x7 Mondays Thru Sundays including Holidays
	Onsite Response Time	Within 4 to 6 hours
Hardware Parts Replacement	RMA Charges	Included
	Availability	Forty-five (45) days
Maintenance Services	Corrective Maintenance	Included
	Preventive Maintenance	Annual
	Moves, Add, & Changes (MAC)	Included.
Manufacturer's Support Services	Hardware	Advance Hardware Replacement
	Software	Fix Releases and updates

2. SCOPE OF SERVICES

A. Statement of Overview. Trends and Technologies, Inc. (Trends) shall render the following services to **PRICON MICROELECTRONICS, INC**(Business Partner) with regard to the Equipment and Services covered in this proposal within the agreed Maintenance Period.

B. Services. Base Services to be provided:

Corrective Maintenance. Trends shall immediately attend to service calls of Business Partner by providing immediate telephone support to diagnose and remedy the reported incident. For this purpose, Trends shall at all times maintain a 24-hour telephone service to receive the calls of Business Partner.

If the incident cannot be resolved off-site, an on-site engineer shall be immediately deployed to the location.

Trends shall supply the necessary spare parts for the purpose of maintaining the Equipment listed in this proposal hereof to its proper working condition. Spare units may be brand new units or refurbished units that are in good working condition.

Preventive Maintenance. Trends shall perform a routine preventive maintenance program on the Equipment at the Site. The parties shall mutually agree upon the specific date and time for each preventive maintenance activity hereon.

The scope of Preventive Maintenance activity is as follows:

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a. General check-up of the equipment or hardware covered under this Agreement.
b. General check-up on any program or software used in the operation of any equipment or hardware provided by Trends;
c. Conduct a complete diagnostic routine within the system.

Hardware Support. In case the equipment is found faulty and the same needs to be pulled out by Trends for Return Material Authorization (RMA) request to **RUCKUS** a replacement unit of the same or alternative specification as that of the malfunctioning equipment shall be provided while the faulty equipment is undergoing RMA. Trends shall shoulder all the costs related and shipment of the equipment subject to RMA.

Trends guarantees that it shall be returned and re-installed fit-for-use to Business Partner within Thirty (30) days, starting from the date the said equipment was pulled-out. Should Trends fails to return or re-install the equipment within the said period, the service unit provided by Trends shall become the property of Business Partner and the pulled-out defective equipment the property of Trends, provided that the service unit shall have all the warranties of a brand new unit.

Parts replacement service level for RMA will take effect thirty (30) days after the commencement of this agreement.

Software Support. For any fault call regarding Software concerns, Trends shall send a Technical Staff on-site to do trouble-shooting and fault-fixing. If required, available software patching for bug-fixes provided by the Principal shall be done.
Trends shall interface and coordinate with Business Partner representative until the issue has been resolved. Regular updates of fault rectification will be provided.

3. EXCLUSIONS. Business Partner acknowledges and agrees that the obligation to provide Maintenance Services does not apply to:

a. Equipment or Services excluded or not described in anywhere in this Agreement;
b. Equipment that has been operated used or stored in a manner that is not in accordance with the supplied documentation;
c. Equipment that has suffered damage through excessive use, misuse, fault or negligent act or omission of Business partner or any person other than Trends; For the purpose of this clause, the activities deemed to be "non-maintenance" are those activities which arise outside of the scope of this agreement and "excessive use" refers to use of the Equipment that is not contemplated by the manufacturer's specifications;
d. Equipment which has been damaged by electromagnetic or electrostatic interference, or power disturbances;
e. Equipment which has been damaged by being operated with unapproved consumable supplies or accessories;
f. Equipment which has been modified without the prior written consent of Trends;
g. Installation, removal or relocation of equipment by persons other than Trends' approved staff and contractors;
h. Any battery back-up associated with the Equipment;
i. Any cables associated with the Equipment;
j. The refurbishment of the Equipment;
k. Provision of operating supplies or accessories;

4. RESPONSIBILITY OF THE BUSINESS PARTNER. To permit Trends to fulfill its obligations pursuant to this Agreement, Business Partner shall:

a. Nominate at least one appropriate person to be Business Partner's contact with Trends regarding Maintenance Services (such person to be regularly available during normal business hours).

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b. Ensure that Trends' maintenance personnel have free, safe and uninterrupted access to the Equipment at all times during the Validity Period;

c. Make available on request the services of any person who operates the Equipment at the Site. In such case, Trends shall give reasonable notice to Business Partner as to the necessity of the presence of such person during the provision of Maintenance Services.
d. Notify Trends immediately in writing if Business Partner ceases to be in possession of the Equipment at the Site;
e. In the event that an equipment that is covered in this agreement is declared defective by Trends, Business Partner has to return the said unit upon delivery of the replacement. If Business Partner fails to do so, Trends shall bill Business Partner the list price of the unit;
f. Business Partner shall not carry out, or cause to be carried out by other persons, modifications or adjustments to the equipment without the prior written consent of Trends.

Trends shall not be liable for any failure to provide the Maintenance Service due to a failure of Business Partner to comply with its obligations under this Clause.

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ANNEX A – LIST OF EQUIPMENT

Address of Installation Site/s : Laguna

Part Number	Description	Serial Number	Qty
827-R500-1000	Partner Support Renewal for R500, 1 Year		6
827-R500-1000	Partner Support Renewal for R500, 1 Year		13
822-1201-1L00	Associate Partner Support Renewal, ZoneDirector ONE AP Upgrade, 1 Year	***231508002008***	23
822-1205-1000	Associate Partner Support Renewal, ZoneDirector 1205, 1 Year	***231508002008***	1

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ANNEX B - CALL-IN PROCEDURES

To request for customer assistance, please contact our Helpdesk:

By Phone (+632) 863 2188; (+632) 917 500 3711 (available 24 x 7)
Please use this method to report critical problems

By SMS (+632) 917 571 7046 (available 24 x 7)
(For non-critical inquiries - Mon - Fri 08:30-17:30 only)

By Email servicedesk@trends.com.ph

(For non-critical inquiries - Mon - Fri 08:30-17:30 only)

To facilitate the processing of your request, please provide the following information:

1. TRENDS Maintenance Contract Number or Purchase Order (if applicable)
2. Company name
3. Contact details (name, number, email)
4. Site Location
5. Equipment affected (model and serial number, if possible)
6. Brief description of the problem

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ANNEX C - ESCALATION MATRIX

Time	Severity 1 (Network Down)	Time	Severity 2 (Severe Impact)	Time	Severity 3 (Impaired Ops)
30 minutes from the time case is opened	Technology Manager Account Manager and/or Sales Manager	1 Hour from the time case is opened	Technology Manager Account Manager and/or Sales Manager	1 Hour and 30 minutes from the time case is opened	Technology Manager Account Manager and/or Sales Manager
4 hours + 30 minutes from the time case is opened	Engineering Head and/or BSG Head/ Business Unit Head	7 Hours from the time case is opened	Engineering Head and/or BSG Head/ Business Unit Head	9 hours + 30 minutes from the time case is opened	Engineering Head and/or BSG Head/ Business Unit Head
8 Hours from the time case is opened	Corporate Operations **Renan Velonza** renanv@trends.com.ph +63 917 526 9097	12 Hours from the time case is opened	Corporate Operations **Renan Velonza** renanv@trends.com.ph +63 917 526 9097	24 Hours from the time case is opened	Corporate Operations **Renan Velonza** renanv@trends.com.ph +63 917 526 9097
Every 4 hours from last escalation until case is Resolved	Chairman & CEO **Hasan Fard** hasan@trends.com.ph +63 917 526 9140	Every 6 hours from the last escalation until case is Resolved	Chairman & CEO **Hasan Fard** hasan@trends.com.ph +63 917 526 9140	Every 12 hours from the last escalation until case is Resolved	Chairman & CEO **Hasan Fard** hasan@trends.com.ph +63 917 526 9140
24 Hours	Continuing Escalation until Restoration	24 Hours	Continuing Escalation until Restoration	48 Hours	Continuing Escalation until Restoration

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ANNEX D



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